

26STCP02137 26STCP02137

County: los-angeles

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Case Number: 26STCP02137 Hearing Date: July 16, 2026 Dept: 529

INTELIFUND, LLC v. M.A.

motion for an order approving transfer of structured
settlement payment rights

Date of

Hearing: July 16, 2026 Trial Date: None

Department: 529 Case No.: 26STCP02137

Moving Party:

Petitioner Interlifund, LLC

Responding

Party: None

BACKGROUND

On

June 8, 2026, Petitioner Interlifund, LLC ("Petitioner") commenced this action, and on June 10, 2026, Petitioner filed the operative First Amended Petition for Approval of Transfer of Structured Settlement Payment Rights (the "Petition") on behalf of real party in interest, Magely Amezcua ("Payee").

On

June 12, 2026, Petitioner filed the instant motion for an order approving of Payee's transfer of structured settlement payment rights to Petitioner.

As

of July 13, 2026, no opposition has been filed.

Ruling

The

Motion for an Order Approving Transfer of Structured Settlement Payment Rights
is GRANTED.

ANALYSIS

Legal

Standard

"A direct or
indirect transfer of structured settlement payment rights is not effective and
a structured settlement obligor or annuity issuer is not required to make any
payment directly or indirectly to any transferee of structured settlement
payment rights unless the transfer has been approved in advance in a final
court order based on express written findings by the court that:

(1) The transfer is in the best interest
of the payee, taking into account the welfare and support of the payee's
dependents.

(2) The payee has been advised in writing
by the transferee to seek independent professional advice regarding the
transfer and has either received that advice or knowingly waived, in writing,
the opportunity to receive the advice.

(3) The transferee has complied with the
notification requirements pursuant to paragraph (2) of subdivision (f), the
transferee has provided the payee with a disclosure form that complies with
Section 10136, and the transfer agreement complies with Sections 10136 and
10138.

(4) The transfer does not contravene any
applicable statute or the order of any court or other government authority.

(5) The payee understands the terms of the

transfer agreement, including the terms set forth in the disclosure statement required by Section 10136.

(6) The payee understands and does not wish to exercise the payee's right to cancel the transfer agreement."

(Ins.
Code, § 10139.5, subd. (a).)

"When determining whether the proposed transfer should be approved, including whether the transfer is fair, reasonable, and in the payee's best interest, taking into account the welfare and support of the payee's dependents, the court shall consider the totality of the circumstances," including the 15 circumstances described in Section 10139.5(b). (Ins. Code, § 10139.5, subd. (b).)

"Following a transfer of structured settlement payment rights ..., "[t]he structured settlement obligor and the annuity issuer shall, as to all parties except the transferee, be discharged and released from any and all liability for the transferred payments." (Ins. Code, § 10139.5, subd. (e)(1)).)

All future statutory references are to the Insurance Code unless otherwise specified.

Discussion

The Court makes the following findings pursuant to Section 10139.5.

A. Section 10139.5(a) Requirements

(1) Section 10139.5(a)(1) requirements have been satisfied: The transfer agreement is in the best interest of the Payee.

In support of the motion, Payee has submitted a declaration, attesting to the following facts.

Payee entered into the original structured settlement agreement in 2016, when she was a minor. (Motion, Exh. 5 (Amezcuca Decl.), ¶ 3, 4.) The agreement arose from a settlement of a third party, personal injury action she brought against Lamon School District. (Id. ¶ 4.) As part of the settlement in that case, Plaintiff received the following structured settlement payments: “96 monthly payments of \$500.00 beginning on September 24, 2027; four [4] annual payment of \$15,000.00 starting on September 24, 2026; a lump sum payment of \$20,000.00 due and payable on September 24, 2027; a lump sum payment of \$25,000.00 due and payable on September 24, 2030; and a lump sum payment of \$51,066.37 due and payable on September 4, 2035[.]” (Ibid.) The sum of those amounts equals \$204,066.37.

Payee and Petitioner have entered into a Structured Settlement Payments Purchase Agreement (the “Agreement”), which states that, in exchange for \$74,879.87, Payee has agreed to sell, assign, and convey the following structured settlement payments (totaling \$159,066.37) to Petitioner: “96 monthly payments of \$500.00 beginning on September 24, 2027 through and including August 24, 2035 [¶] •1 lump sum payment of \$15,000.00 due and payable on September 24, 2026 [¶] •1 lump sum payment of \$20,000.00 due and payable on September 24, 2027 [¶] •1 lump sum payment of \$25,000.00 due and payable on September 24, 2030 [¶]•1 lump sum payment of \$51,066.37 due and payable on September 4, 2035 (‘Assigned Payments’).” (Motion, Exh. 2 – a copy of the Agreement, p. 1.)

The Court finds that Payee has established the transfer will be in her best interest. Payee testifies that the original settlement was intended as compensation for her injuries. (Amezcuca Decl., ¶ 3.) However, she is no longer being treated for those injuries. (Id. ¶¶ 3, 4.) In addition, she is 20 years old, single, and has no minor children or other dependents. (Id. ¶ 4.) She makes \$3,000 per month from her employment as a receptionist. (Ibid.) She intends to use the \$74,879.87 she will receive from Petitioner under the Agreement to purchase a new vehicle and get into a new apartment closer to her work. (Ibid.)

Therefore, the Court finds Section 10139.5(a)(1) satisfied.

(2)

Section

10139.5(a)(2) requirements have been satisfied: Payee has been advised in writing by the transferee to seek independent professional advice regarding the transfer and has knowingly waived, in writing, the opportunity to receive the

advice.

Payee states that she was advised to seek independent counsel and financial advice in connection with this Petition and understands the nature and terms of the Agreement but has chosen not to seek such advice and wants to move forward with the transaction. (Amezcuca Decl., ¶¶ 11, 13, 14.) Therefore, the Court finds Section 10139.5(a)(2) satisfied.

(3) Section 10139.5(a)(3) requirements have been satisfied.

Section 10139.5(a)(3) requires the Court to find: “The transferee has complied with the notification requirements pursuant to paragraph (2) of subdivision (f) [of the statute], the transferee has provided the payee with a disclosure form that complies with Section 10136, and the transfer agreement complies with Sections 10136 and 10138.”

Petitioner has submitted a copy of the disclosure form required by Section 10136. (Motion, Exh. 4 – a copy of the “Disclosure Notice Required By Law”.) The statute required Petitioner to provide Payee with the Disclosure required by that statute at least 10 days before she signed the Agreement. Here, Payee signed the Agreement on May 24, 2026, before signing the Disclosure on May 26, 2026. However, Payee testifies that she received the Disclosure at least 10 days before she signed the Agreement. (Amezcuca Decl., ¶ 10.)

Therefore, the Court’s finds that Petitioner complied with Section 10136.

The Court also finds that the Agreement complies with Section 10138 because it does not contain any of the voidable and unenforceable provisions prohibited by that statute.

Lastly, the Court finds that Petitioner has complied with Section 10139.5(f)(2) requirements, including submitting proof of service showing compliance with the

notification requirements under that statute.

(4)

Section

10139.5(a)(4) requirements have not been satisfied: The transfer agreement contains language that is not fair, reasonable, and/or in the best interest of the Payee within the meaning of Section 10137.

Section 10139.5(a)(4) requires the Court to ensure that the proposed transfer does not contravene any applicable statute (e.g., Section 10137).

Section 10137 states: “A transfer of structured settlement payment rights is void unless a court reviews and approves the transfer and finds the following conditions are met:

(a)

The transfer of the structured settlement payment rights is fair and reasonable and in the best interest of the payee, taking into account the welfare and support of his or her dependents.

(b)

The transfer complies with the requirements of this article, will not contravene other applicable law, and the court has reviewed and approved the transfer as provided in Section 10139.5.”

The Court finds the Agreement to be fair and reasonable and in the best interest of the Payee.

(5)

Section

10139.5(a)(5) requirements have been satisfied: Payee understands the terms of the transfer agreement, including the terms set forth in the disclosure statement required by Section 10136.

The Court

finds that Section 10139.5(a)(5) requirements have been satisfied because Payee has testified that she understands the terms of the Agreement and Disclosure. (Amezcuca Decl., ¶¶ 10, 13.)

(6) Section 10139.5(a)(6) requirements

have been satisfied: Payee understands and does not wish to exercise the payee's right to cancel the transfer agreement.

The Court

finds that Section 10139.5(a)(6) requirements have been satisfied because Payee has testified that she does not wish to exercise her right to cancel the agreement. (Amezcuca Decl., ¶ 14.)

B.

Section

10139.5 (b) Requirements

The

Court has considered the totality of the circumstances concerning the Agreement and finds all other parts of the Agreement to be fair, reasonable, and in the Payee's best interests.

C.

Section 10139.5(c) Requirements

The

Court finds that Petitioner has satisfied the requirements under Section 10139.5(c) including providing the Payee's name, address, and age. (Amezcuca Decl., ¶ 4.)

CONCLUSION

The Motion

for an Order Approving Transfer of Structured Settlement of Payment Rights is GRANTED.